

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0002630-2022

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Derrick Floyd

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CASE INFORMATION

Cross Court Docket Nos: 202 EAL 2024, 525 EDA 2023

Judge Assigned: Kamau, Nicholas

Date Filed: 03/30/2022

Initiation Date: 03/30/2022

OTN: U 237854-1

LOTN:

Originating Docket No: MC-51-CR-0016856-2021

Initial Issuing Authority: Bradley K. Moss

Final Issuing Authority:

Arresting Agency: Philadelphia Pd

Arresting Officer: Outterbridge, Bryan

Complaint/Citation No.: 2116030799-0016856

Incident Number: 2116030799

County: Philadelphia

Township: Philadelphia City

Case Local Number Type(s)

Case Local Number(s)

Originating Docket Number

MC-51-CR-0016856-2021

District Control Number

2116030799

Originating Document Number

2116030799-0016856

STATUS INFORMATION

<u>Case Status:</u>	<u>Active</u>	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u>	09/10/2021
		10/28/2025	Awaiting Trial Readiness Conference		
		06/09/2025	Awaiting Trial Readiness Conference		
		05/05/2025	Awaiting Scheduling Conference		
		01/28/2025	Appeal Decided		
		01/28/2025	Interlocutory Appeal Decision		
		12/17/2024	Completed		
		06/17/2024	Awaiting Appellate Court Decision		
		02/06/2023	Awaiting Interlocutory Appeal Decision		
		04/11/2022	Awaiting Scheduling Conference		
		03/30/2022	Awaiting Filing of Information		

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	04/12/2022	11:00 am	1104	Trial Commissioner Lisa McNevin	Scheduled
Scheduling Conference	05/04/2022	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Status	06/29/2022	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Waiver Trial	10/18/2022	9:00 am	1002	Judge Roxanne Covington	Continued
Waiver Trial	11/30/2022	9:00 am	1002	Judge Roxanne Covington	Continued
Waiver Trial	01/11/2023	9:00 am	1102	Judge Kai Scott	Continued
Waiver Trial	01/11/2023	9:00 am	808	Judge Nicholas Kamau	Moved
Waiver Trial	01/11/2023	9:00 am	601	Judge Nicholas Kamau	Moved
Waiver Trial	01/11/2023	9:00 am	808	Judge Nicholas Kamau	Scheduled
Status Listing	02/08/2023	9:00 am	808	Judge Nicholas Kamau	Moved
Status Listing	05/22/2023	9:00 am	808	Judge Nicholas Kamau	Continued
Status Listing	09/13/2023	9:00 am	808	Judge Nicholas Kamau	Continued
Status Listing	11/15/2023	9:00 am	808	Judge Nicholas Kamau	Continued
Status Listing	06/24/2024	9:00 am	808	Judge Nicholas Kamau	Continued
Status Listing	09/18/2024	9:00 am	808	Judge Nicholas Kamau	Scheduled
Appeal	03/31/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Appeal	05/05/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Scheduling Conference	06/09/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Bail Hearing	07/11/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Trial Readiness Conference	10/23/2025	9:00 am	808	Judge Nicholas Kamau	Scheduled
Jury Trial	10/28/2025	9:00 am	808	Judge Nicholas Kamau	Continued
Trial Readiness Conference	02/06/2026	9:00 am	808	Judge Nicholas Kamau	Moved
Trial Readiness Conference	02/06/2026	9:00 am	502	Judge Nicholas Kamau	Scheduled
Jury Trial	02/17/2026	9:00 am	502	Judge Nicholas Kamau	Continued
Jury Trial	02/17/2026	9:00 am	808	Judge Nicholas Kamau	Moved
Status	03/20/2026	9:00 am	502	Judge Nicholas Kamau	Scheduled
Jury Trial	04/06/2026	9:00 am	502	Judge Nicholas Kamau	Scheduled
Waiver Trial	04/24/2026	9:00 am	502	Judge Nicholas Kamau	Continued
Status	05/29/2026	9:00 am	502	Judge Nicholas Kamau	Scheduled
Waiver Trial	06/22/2026	9:00 am	502	Judge Nicholas Kamau	Scheduled

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DEFENDANT INFORMATION

Date Of Birth: 12/01/1977 City/State/Zip: Philadelphia, PA 19111

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	Floyd, Derrick

BAIL INFORMATION

Floyd, Derrick

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	09/10/2021	Monetary	Municipal Court	10.00%	\$150,000.00
Change Bail Type	05/22/2023	Unsecured	Common Pleas		\$150,000.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
1	1		35 § 780-113	Manufacture, Delivery, or Possession With Intent to Manufacture or Deliver	09/09/2021	U 237854-1
2	2		18 § 6110.2	Posses Firearm W/Manufacturer Number Altered, Etc	09/09/2021	U 237854-1
3	3		18 § 6106	Firearms Not To Be Carried W/O License	09/09/2021	U 237854-1
4	4		35 § 780-113	Int Poss Contr Subst By Per Not Reg	09/09/2021	U 237854-1
5	5		18 § 6108	Carry Firearms Public In Phila	09/09/2021	U 237854-1
6	6		18 § 6105	Possession Of Firearm Prohibited	09/09/2021	U 237854-1

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	03/29/2022	Not Final
1 / Manufacture, Delivery, or Possession With Intent to Manufacture or Deliver	Held for Court	35 § 780-113
2 / Posses Firearm W/Manufacturer Number Altered, Etc	Held for Court	18 § 6110.2
3 / Firearms Not To Be Carried W/O License	Held for Court	18 § 6106
4 / Int Poss Contr Subst By Per Not Reg	Held for Court	35 § 780-113
5 / Carry Firearms Public In Phila	Held for Court	18 § 6108
6 / Possession Of Firearm Prohibited	Held for Court	18 § 6105

Proceed to Court Defendant Was Not Present

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Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		
Information Filed	04/08/2022	Not Final
1 / Manufacture, Delivery, or Possession With Intent to Manufacture or Deliver	Proceed to Court	35 § 780-113
2 / Posses Firearm W/Manufacturer Number Altered, Etc	Proceed to Court	18 § 6110.2
3 / Firearms Not To Be Carried W/O License	Proceed to Court	18 § 6106
4 / Int Poss Contr Subst By Per Not Reg	Proceed to Court	35 § 780-113
5 / Carry Firearms Public In Phila	Proceed to Court	18 § 6108
6 / Possession Of Firearm Prohibited	Proceed to Court	18 § 6105

COMMONWEALTH INFORMATION

Name:

Supreme Court No:

ATTORNEY INFORMATION

Name:

Edward Joseph Foster
Private

Supreme Court No:

318302

Rep. Status:

Active

Phone Number(s):

Address:

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	03/30/2022		Court of Common Pleas - Philadelphia County
Held for Court			
1	04/08/2022		Krasner, Larry
Information Filed			
1	04/22/2022		Defender Association of Philadelphia
Motion for Discovery			
1	05/04/2022		Shaffer, Zachary C.
Order Granting Motion to Withdraw Counsel			

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4	05/04/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	05/04/2022		Shaffer, Zachary C.
Order Granting Motion to Withdraw Counsel			
2	06/29/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	06/30/2022		Shaffer, Zachary C.
Scheduling Order - Non Jury			
1	10/18/2022		Covington, Roxanne
Defense Request For Continuance Attorney Unavailable			
3	11/30/2022		Kamau, Nicholas
Court Request For Continuance Case Held Under Advisement			
2	12/08/2022		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	12/20/2022		Philadelphia County District Attorney's Office
Brief in Opposition to Motion to Suppress Evidence			
1	01/03/2023		Defender Association of Philadelphia
Answer/Response			
3	01/03/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	01/11/2023		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	01/11/2023		Scott, Kai
Case Listed in Error			

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6	01/11/2023		Kamau, Nicholas
Order Granting Motion to Suppress			
1	02/06/2023		Philadelphia County District Attorney's Office
Interlocutory Appeal to the Superior Court			
1	02/07/2023		Kamau, Nicholas
Order Issued Pursant to Pa.R.A.P. 1925(b)			
1	02/08/2023		Kamau, Nicholas
Status Listing			
1	02/13/2023		Philadelphia County District Attorney's Office
Statement of Matters Complained on Appeal			
1	03/07/2023		Superior Court of Pennsylvania - Eastern District
Docketing Statement from Superior Court			
1	03/23/2023		Floyd, Derrick
Motion for Modification of Bail			
1	04/17/2023		Defender Association of Philadelphia
Motion for Modification of Bail			
1	04/20/2023		Kamau, Nicholas
Order Scheduling Hearing			
1	04/27/2023		Kamau, Nicholas
Opinion			
2	04/27/2023		Court of Common Pleas - Philadelphia County
Appeal Docket Entries and Served			
3	04/27/2023		Court of Common Pleas - Philadelphia County
Certificate and Transmittal of Record to Appellate Court			

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3	05/22/2023		Kamau, Nicholas
Bail Type Changed - Floyd, Derrick			
4	05/22/2023		Court of Common Pleas - Philadelphia County
Order Granting Motion for Modification of Bail			
1	09/13/2023		Kamau, Nicholas
Commonwealth Request For Continuance For Status of Appeal			
1	11/15/2023		Kamau, Nicholas
Status Listing			
1	06/17/2024		Supreme Court of Pennsylvania - Eastern District
Petition for Allowance of Appeal Filed - Supreme Court			
1	06/24/2024		Kamau, Nicholas
Status Listing			
1	09/18/2024		Kamau, Nicholas
Status Listing			
4	09/18/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	12/17/2024		Supreme Court of Pennsylvania - Eastern District
Petition for Allowance of Appeal Denied - Supreme Court			
1	01/28/2025		Superior Court of Pennsylvania - Eastern District
Interlocutory Disposition from Superior Court			
2	01/28/2025		Superior Court of Pennsylvania - Eastern District
Superior Court Opinion			

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3	01/28/2025		Superior Court of Pennsylvania - Eastern District
Appeal Granted - Jurisdiction Relinquished			
4	03/31/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	03/31/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
3	05/05/2025		Kamau, Nicholas
Defense Request For Continuance For Further Investigation			
4	05/05/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	06/09/2025		Philadelphia County District Attorney's Office
Motion for Modification of Bail			
2	06/09/2025		Kamau, Nicholas
Order Granting Motion for Continuance			
6	06/09/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
9	06/09/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
11	06/09/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	07/11/2025		Kamau, Nicholas
Order Denying Motion for Modification of Bail			

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2	07/11/2025		Kamau, Nicholas
Order Denying Motion for Modification of Bail			
1	10/21/2025		Defender Association of Philadelphia
Motion to Sever			
1	10/23/2025		Foster, Edward Joseph
Entry of Appearance			
2	10/23/2025		Kamau, Nicholas
Defense Request For Continuance For Further Investigation			
1	10/28/2025		Kamau, Nicholas
Defense Advance Request For Continuance			
5	10/28/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	12/23/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	12/23/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	12/24/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	02/06/2026		Kamau, Nicholas
Defense Request For Continuance For Further Investigation			
5	02/06/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
8	02/06/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			

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1	03/20/2026		Kamau, Nicholas
Defense Request For Continuance For Further Investigation			
4	03/20/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	04/06/2026		Kamau, Nicholas
Case Listed in Error			
2	04/24/2026		Kamau, Nicholas
Defense Advance Request For Continuance			
5	04/24/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	05/27/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			